Central Council of Ministers

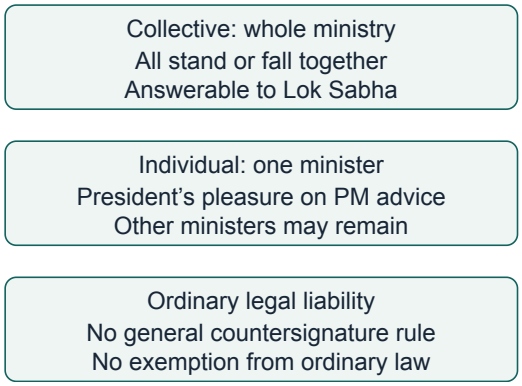
1. The parliamentary executive

- **President = constitutional head; Prime Minister-led Council = real political executive.** Council membership is wider than the Cabinet; the Cabinet is its principal decision-making core.
- **Article 74:** Council headed by PM aids/advises President. **42nd Amendment (1976)** made advice binding; **44th Amendment (1978)** allows one reconsideration, after which the reconsidered advice binds.
- **74(2):** courts cannot inquire into whether/what ministerial advice was tendered. This does **not** make underlying material or executive action automatically immune from judicial review.
- **U.N.R. Rao (1971):** Council must continue even when Lok Sabha is dissolved. **Shamsher Singh (1974):** President/Governor normally act on ministerial advice; their constitutional satisfaction ordinarily means ministerial satisfaction.

2. Appointment, size and tenure

- **Article 75:** President appoints PM; appoints other ministers **on PM's advice**. President's pleasure operates through responsible government: PM can seek a minister's resignation or advise removal.
- **91st Amendment (2003), 75(1A):** ministers **including PM ≤15% of total Lok Sabha membership**. No constitutional Union minimum of 12; that minimum concerns State ministries.
- **75(1B):** a member disqualified for defection cannot become minister until their original term expires, or—if they contest an election earlier—until declared elected, whichever is earlier. Six-month membership provision cannot bypass disqualification.
- A minister can belong to **either House**. A non-MP may be appointed but must become a member of either House within **six consecutive months**, otherwise ceases to be minister.
- **Article 88:** minister may speak/participate in either House, joint sittings and a parliamentary committee of which nominated a member; this right itself confers no vote. **Votes only in the House of which they are a member.**
- President administers **oaths of office and secrecy**. Office oath: Constitution/allegiance; sovereignty/integrity; faithful duties; justice without fear/favour, affection/ill-will. Secrecy permits disclosure only as necessary for due discharge of duties.
- Parliament determines salaries/allowances by law. **Chapter's 2001 monthly sumptuary allowance:** PM ₹3,000; Cabinet minister ₹2,000; MoS ₹1,000; deputy minister ₹600 (earlier ₹1,500/1,000/500/300). These are historical allowance figures, **not total current salary**.
- **Deputy PM is a political designation**, with no separate constitutional powers or automatic succession. The Devi Lal oath controversy (1990) did not invalidate his substantive ministerial oath merely because of this designation.

3. Responsibility: the key distinction



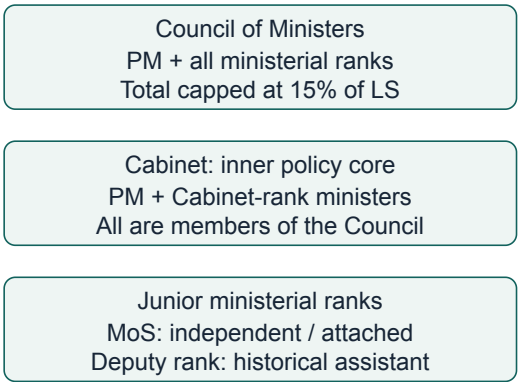
Three meanings of ministerial responsibility.

- **Collective — 75(3):** entire Council is responsible to **Lok Sabha**, including its Rajya Sabha ministers. All defend agreed government policy; a dissenting minister must resign if unable to support it.
- Lok Sabha's no-confidence vote brings down the **whole Council**. PM's resignation also ends the ministry. A defeated Council may advise dissolution; acceptance is not automatic in every situation.
- Historical resignations: **B.R. Ambedkar, 1951**, Hindu Code Bill differences (**1953 in chapter is incorrect**); **C.D. Deshmukh, 1956**, Bombay reorganisation; **Arif Mohammed Khan, 1986**, Muslim Women (Protection of Rights on Divorce) legislation.
- **Individual — 75(2):** a particular minister may be removed on PM's advice even when the ministry retains Lok Sabha confidence.
- **Legal responsibility:** India has no British-style constitutional requirement that every presidential act be countersigned by a minister who thereby assumes legal responsibility. This **does not exempt ministers from ordinary criminal, civil or statutory liability**.

4. Government business and PM's duties

- **Article 77:** executive action expressed in President's name; authenticated as prescribed. Proper authentication prevents challenge solely on the ground that President did not personally make the order; other legal defects remain reviewable.
- President makes rules for convenient transaction of government business and allocation among ministers. These rules structure departmental work and Cabinet coordination.
- **Article 78, PM → President:** communicate Council's administrative/legislative decisions; furnish information sought; place an individual minister's decision before the Council if President requires it.

5. Ranks within the Council



Cabinet membership differs from departmental charge.

- **Cabinet ministers:** major departments/portfolios; Cabinet members; shape government policy and coordinate its implementation.
- **Ministers of State:** either **independent charge** of a ministry/department or **attached** to a Cabinet minister. Independent charge gives departmental responsibility; it does **not** confer Cabinet membership. May attend Cabinet when invited for relevant business.
- **Deputy ministers:** historical junior rank assisting Cabinet ministers/MoS; no independent charge or Cabinet membership. All these ranks need not be present in every ministry.
- **Parliamentary secretaries:** historically appointed to assist ministers in parliamentary work; distinct from constitutionally appointed ministers. Do not treat them as a mandatory present-day Union rank or a way around constitutional size/disqualification rules.

6. Council versus Cabinet

- **Council:** all ministers, constitutionally required under 74–75; broader membership; collectively responsible to Lok Sabha; implements government decisions through departments. The claim that it “never meets” is too absolute.
- **Cabinet:** smaller inner body of Cabinet-rank ministers with PM; conducts principal policy deliberation, coordinates departments, gives political direction and handles major decisions. Meeting frequency is practice, **not a constitutional weekly requirement**.
- **Cabinet explicitly defined in 352(3):** PM + other ministers of Cabinet rank appointed under 75; definition inserted by **44th Amendment, 1978**. National Emergency requires its decision communicated **in writing** to President.
- Cabinet leads policymaking, crisis management, legislation, budget priorities, key appointments and foreign policy, subject to law and constitutional procedures. Its influence is extensive; courts, Parliament, rights and federal limits still apply.

7. Familiar descriptions of Cabinet power

- **Ramsay Muir:** steering wheel; **Lowell:** keystone of political arch; **Sir John Marriott:** pivot around which political machinery revolves; **Gladstone:** solar orb; **Barker:** magnet of policy.
- **Bagehot:** “hyphen” / “buckle” joining legislature and executive; **Ivor Jennings:** core and source of unity; **L.S. Amery:** central directing instrument of government.

- **“Cabinet dictatorship”** describes strong majority-backed executive dominance; it is a political criticism, not a constitutional grant of unlimited authority.

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8. Kitchen Cabinet / inner Cabinet

- Informal circle of PM’s trusted advisers: selected ministers and sometimes non-minister associates. Composition varies; **not a constitutional body or necessarily present under every PM**. Indira Gandhi’s era is a prominent chapter example.
- **Benefits:** small group, quick consultation, frequent contact and confidentiality. **Risks:** sidelining formal Cabinet, weak accountability of outsiders and bypassing established procedures.
- Advice from an informal circle does not itself authorise governmental decisions. Formal responsibility, lawful procedure and safeguards for confidential information remain necessary.

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9. One-minute recall

- **74 = advice; 75 = appointment/size/responsibility; 77 = business; 78 = PM–President information; 88 = participation.**
- **15% includes PM; six months for non-MP; collective responsibility to LS; Cabinet ≠ whole Council; independent-charge MoS ≠ Cabinet member.**
- **Deputy PM ≠ constitutional succession; kitchen Cabinet ≠ formal Cabinet; 352(3) = written Cabinet decision for National Emergency.**

References

- Official Constitution · PIB: Ambedkar’s resignation in 1951.